



POLICE DEPARTMENT

May 2, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202107117 (Incident Date: November 12, 2021) regarding Police Officer
Cody Duffy, Tax No. 966549 (DADS No. 2023-27971)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202107117, pertaining to Police Officer Duffy. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Duffy would be detrimental to the Police Department's disciplinary process. In this matter, the CCRB substantiated three allegations against Police Officer Duffy. The first two allegations are that Police Officer Duffy improperly entered and searched the complainant's residence and the third allegation involves discourtesy toward the complainant.

The Police Commissioner, having reviewed the entirety of this matter, has determined that Police Officer Duffy's entry and search of a residence, under the direct supervision of a sergeant on scene for the duration of this incident, does not constitute actionable misconduct, and therefore does not warrant charges and specifications. However, please note that the supervisor will receive discipline in accordance with CCRB's recommendations.

In this matter, multiple officers, including their patrol sergeant, responded to a call from a homeless shelter regarding a dispute with a weapon. Upon arrival, shelter staff informed the sergeant that they recently became aware of the dispute with a knife involving the complainant. Body-Worn Camera (BWC) video showed that Police Officer Duffy obtained consent to enter the complainant's residence within the shelter to search for a weapon. At no time was it clear to Police Officer Duffy that consent was withdrawn, nor was Police Officer Duffy ever directed by his sergeant to terminate the search. With regard to the allegation that Police Officer Duffy was discourteous by wearing a disrespectful vest patch, the Police Commissioner agrees with the CCRB's substantiation and will direct an appropriate penalty in accordance with the Department's Disciplinary System Guidelines.

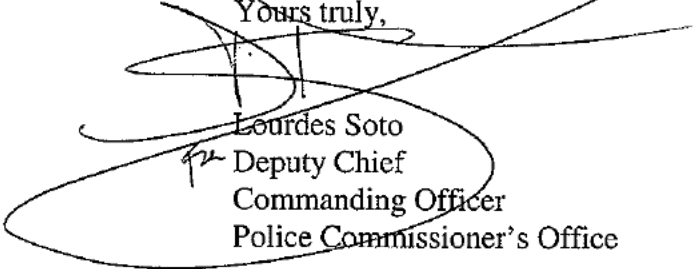
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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Duffy for the alleged violation of Administrative Guide Procedure 304-06 (1)(Prohibited Conduct/Improper Entry and Search). Furthermore, Police Officer Duffy will be issued a Schedule "A" Command Discipline for the violation of Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department/Discourtesy).

If you have any questions, please feel free to contact me at § 87(2)(b)

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

May 8, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Cody Duffy
Disciplinary Case No.: 2023-27971

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated May 2, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Duffy and issue a Schedule “A” Command Discipline. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that the Police Commissioner reviewed the entirety of this matter and determined that PO Cody Duffy’s entry and search of a residence, under the direct supervision of a sergeant on scene for the duration of the incident, does not constitute actional misconduct and therefore does not warrant charges and specifications. However, the supervisor will receive discipline in accordance with the CCRB’s recommendation and PO Duffy will be issued a Schedule “A” Command Discipline for the violation of Patrol Guide 200-02 for the vest patch.

It is undisputed from PO Duffy’s Body Worn Camera Footage that he initially obtained consent from the occupant to search the apartment, but the occupant states at two minutes and thirty-three seconds (2:33) that they do not want the officers in the apartment and repeats multiple times that she does not want them there and that they can leave. The occupant repeatedly states to “get out of here” and they do not have the right to just come in there throughout the entire incident. PO Cody Duffy continues to search despite the revocation of consent by the occupant multiple times while he was in close proximity. There is no evidence that PO Duffy acted under direct orders from a supervisor to continue the search when the occupant repeatedly stated to get out.

As the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the Police Commissioner’s decision is not

reasonable under the circumstances. CCRB would request that the Charges and Specifications against PO Duffy served and not dismissed.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 10, 2023

Re: CCRB v. Police Officer Cody Duffy
Disciplinary Case No. 2023-27971

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 9, 2023, concerning the CCRB case involving Police Officer Cody Duffy.

The Police Commissioner maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Duffy, for the reasons expressed in my May 2, 2023 letter. CCRB's assertion that consent was revoked does not take into account the totality of the circumstances, including that Police Officer Duffy was under the direct supervision of his sergeant. It also ignores the fact that the complainant stated to the officers that "you're free to come in and search," in addition to multiple instances where the complainant expressed her desire for the officers to search and then leave, including before, during, and after the time referenced in your letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now will direct that Police Officer Duffy receive no disciplinary action in connection with the entry and search, but will receive discipline with respect to the vest patch.

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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